



Republic of the Philippines
Province of Sorsogon
MUNICIPALITY OF PRIETO DIAZ
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FILE COPY

Office of the Secretary to the Sangguniang Bayan

SBPC-092325
OFFICE of the SANGGUNIANG BAYAN
LOCAL GOVERNMENT UNIT
Prieto Diaz, Sorsogon

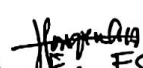
RELEASED

1st Endorsement BY: PINKY E. DESTURA
September 23, 2025
DATE: 9-23-25 TIME: 1:32 pm

Respectfully transmitted to **HON. JORGE DEUNA**, Punong Barangay of San Isidro, the herein attached Resolution No. 167-2025 entitled: **"A RESOLUTION DECLARING AS VALID BARANGAY ORDINANCE NO. 003 SERIES OF 2025 OF BARANGAY SAN ISIDRO, PRIETO DIAZ, SORSOGON, SUBJECT TO SOME AMENDMENTS."** for his information and appropriate action.


BERNADETTE R. ESPEÑA- YAO
Secretary to the Sangguniang Bayan

Cc:

clara  E. Espinola
Proy. Secretary
9/24/25



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Office of the Sangguniang Bayan

EXCERPT FROM THE MINUTES OF THE REGULAR SESSION OF THE 12TH SANGGUNIAN
BAYAN OF PRIETO DIAZ, SORSOGON HELD ON SEPTEMBER 8, 2025 AT ITS SESSION
HALL

PRESENT:

Hon. Avon D. Domalaon, MPA	Municipal Vice Mayor/ Presiding Officer
Hon. Ryand D. Diño	Sangguniang Bayan Member
Hon. Vicente B. Bayoca	Sangguniang Bayan Member
Hon. Bienvenido D. Ayo, Jr.	Sangguniang Bayan Member
Hon. Joseph H. Yap, Jr.	Sangguniang Bayan Member
Hon. Alexander D. Destura	Sangguniang Bayan Member
Hon. Jo Madel D. Domalaon	Sangguniang Bayan Member
Hon. Juan D. Ebid	Sangguniang Bayan Member
Hon. Lilia D. Oliveres	Sangguniang Bayan Member
Hon. Antonio J. Emano, Jr.	LnB Pres./S. B. Member
Hon. Rene Joseph D. Domasian	SKMF Pres./S. B. Member

ABSENT: None

RESOLUTION NO. 167-2025

Introduced by the council

**A RESOLUTION DECLARING AS VALID BARANGAY ORDINANCE NO. 003
SERIES OF 2025 OF BARANGAY SAN ISIDRO, PRIETO DIAZ, SORSOGON,
SUBJECT TO SOME AMENDMENTS.**

WHEREAS, transmitted for the review of the Sangguniang Bayan is San Isidro
Barangay Ordinance No. 003 Series of 2025 entitled: *"An Ordinance Prohibiting The
Destruction Of Barangay Properties Of Barangay San Isidro And Imposing Penalties
Thereof"*

WHEREAS, the joint committees of Rules and Good Government and Committee
on Barangay Affairs, find the said ordinance to be well-meaning as it aims to safeguard
all government-owned properties, which are acquired through public funds from all forms
of vandalism and negligent damage, for the benefit of the community;

WHEREAS, this august body believes that the protection and preservation of
barangay properties ensures continuous delivery of basic services and promotes a sense
of community ownership and responsibility;

WHEREAS, hereunder are the findings of this august body which the Sangguniang
Barangay should consider, to wit;

WHEREAS, In Section III Definition of Terms. Some words like "vandalism" and "malicious mischief" are doubly entered and defined;

WHEREAS, in Section IV (d) - "the conduct of arson of any kind", is not is punishable by a barangay ordinance, but rather by the Revised Penal Code;

WHEREAS, In Section V Penalty Clause. It referenced RA 11362 which is entitled: "*An Act Authorizing The Court To Require Community Service In Lieu of Imprisonment For The Penalties Of Arresto Menor And Arresto Mayor . . .*" The title of the act itself, explicitly states that, it is a court, not a barangay, that has the discretion to require community service as a penalty;

WHEREAS, Section 391 (12) of the Local Government Code of 1991 provides that the Sangguniang Barangay, shall authorize the Punong Barangay to, among others, (b) prescribe fines in amounts not exceeding one thousand pesos (P1,000.00) for violation of barangay ordinances;

WHEREAS, the Sangguniang Bayan therefore strongly suggests that amendments be made accordingly to the subject barangay ordinance;

WHEREAS, notwithstanding the suggested amendments, this collegial body finds the said ordinance to be well within the powers of the barangay as provided for in the Local Government Code of 1991;

WHEREAS, on motion of Hon. Ryand Diño, duly seconded by Hon. Alexander Destura;

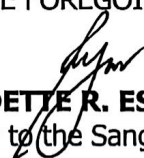
NOW, THEREFORE, be it as it is;

HEREBY RESOLVED, to declare as valid Barangay Ordinance No. 003 series of 2025 of Barangay San Isidro, Prieto Diaz, Sorsogon, subject to some amendments;

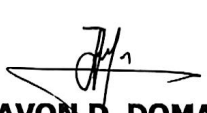
FINALLY RESOLVED, to transmit this resolution to the Sangguniang Barangay of San Isidro through its Punong Barangay Joerge Deuna; copy furnished all concerned for their information and appropriate action;

APPROVED UNANIMOUSLY.

I HEREBY CERTIFY TO THE CORRECTNESS OF THE FOREGOING.


BERNADETTE R. ESPEÑA-YAO
Secretary to the Sangguniang Bayan

ATTESTED:


Hon. AVON D. DOMALAON, MPA
Municipal Vice Mayor/Presiding Officer